

must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.’ ” (*Id.*, at 992.)

Here, Defendants proffer an arbitration agreement that provides it is governed by the FAA and that broadly covers all employment-related claims, including disputes based on tort, contract, or statute, such as claims for discrimination, harassment, and/or retaliation, and therefore encompasses the claims asserted in this action. (Van Hooser Decl., ¶¶ 4, 8, Exhs. A-B.)

The court finds that Defendants met their initial burden by submitting a copy of the Arbitration Agreement purportedly signed by Plaintiff, which encompasses Plaintiff’s employment-related claims. (Van Hooser Decl., ¶ 8, Exhs. A-B.)

The burden therefore shifted to Plaintiff to produce admissible evidence to show a factual dispute and shift the burden back to Defendants regarding the agreement’s existence or authenticity.

Incomplete Agreement?

Here, Plaintiff first argues the Arbitration Agreement is unenforceable because the Arbitration Agreement is missing the caption and the beginning of the first paragraph, and as such, Defendants failed to comply with Rule 3.1330 of the California Rules of Court.

In response, Defendants demonstrate the omission was clerical and does not negate the existence or enforceability of the Arbitration Agreement. Defendants explain that the omission resulted from a scanning or photocopying error rather than an incomplete agreement. (Van Hooser Decl., ¶ 8, Exhs. A-B.) Van Hooser attests that he reviewed Plaintiff’s personnel file maintained in the ordinary course of business, which included the signed Arbitration Agreement bearing Plaintiff’s wet signature dated 8/31/21. (*Ibid.*) He further states that Defendants located the

complete template version of the Arbitration Agreement used at the time of Plaintiff's hiring, including the omitted header and introductory language, and confirmed the agreement had not changed during the relevant period. (Ibid.) Van Hooser also attests that Plaintiff's handwriting, date, and signature on the Arbitration Agreement are consistent with multiple other documents contained in Plaintiff's personnel file. (Ibid.) He explains the omission was likely due to the office scanner pulling in the document incorrectly, thereby cutting off a portion of the top of the page. (Supp. Van Hoose Decl., ¶ 3.)

Re the Rules of Court, rule 3.1330 requires only that the arbitration provisions be stated verbatim or attached and incorporated by reference. Here, the operative arbitration provision was attached to the moving papers.

Parties Not Sufficiently Identified?

Plaintiff next argues that the Arbitration Agreement is fatally ambiguous because it repeatedly references "the Company" without identifying the applicable entity or entities.

Under California law the basic requirements for an enforceable contract are (1) parties capable of contracting, (2) the consent of those parties, (3) a lawful object, and (4) adequate consideration. (Civ. Code, § 1550; see *J.B.B. Investment Partners Ltd. v. Fair* (2019) 37 Cal.App.5th 1, 9.) Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable. (*Bustamante v. Intuit, Inc.* (2006) 141 Cal. App. 4th 199, 209.) In determining whether there is mutual consent, the court will often consider extrinsic evidence and resolve a question of fact. (*Eagle Fire & Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448, 468.)

Here, the identity of the contracting parties is reasonably ascertainable from the surrounding circumstances and related employment documents, including Plaintiff's offer letter identifying the employer as "Sunshine Behavioral Health Group dba Chapters Capistrano," as well as Plaintiff's acknowledged employment relationship with